March 15, 2025
Via email to: [redacted]

Re: Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

Thank you for this opportunity to provide comments on the development of an AI Action Plan.

AI has many potential benefits, including for people with disabilities. AI also presents risks of bias when not designed to accommodate the full range of human variation.

It is possible to develop AI in ways that address these risks; that benefit all users; and that promote innovation[1].

The demographics of disability are often underestimated when designing technology, adversely impacting the efficiency of government use of information technology. Over 25% of the US adult population has some type of disability[2], many of which can impact use of technology, for instance vision, hearing, speech, movement, dexterity, attention, mental health, or cognition. Anyone can acquire a functional limitation at any point in their life, including many temporary conditions. It is useful and efficient to build systems that accommodate potential functional differences in advance so that all can benefit from advances in technology.

Examples of inadvertent bias with risks to civil rights from use of AI include a resume screening tool that might bypass an excellent job candidate because of mention of accessibility work; AI-based worker surveillance that might flag a top performer who happens to have a movement disorder; or a privacy violation because of inadequate anonymization of personal health data that includes a rare disorder.

Recent practical guidance in the report “Building a Disability-Inclusive AI Ecosystem: A Cross-Disability, Cross-Systems Analysis of Best Practices”[3] can help the federal government use AI in ways that accommodate the needs of all users. This guidance, from the American Association of People with Disabilities (AAPD) and the Center for Democracy and Technology (CDT), suggests considerations relevant to the use of AI in different areas of

[1] “Case Studies in Disability Driven Innovation.” Robert Ludke, 2025
[2] https://www.cdc.gov/disability-and-health/articles-documents/disability-impacts-all-of-us-infographic.html
[3] Building A Disability-Inclusive AI Ecosystem: A Cross-Disability, Cross-Systems Analysis of Best Practices. Ariana Aboulafia, CDT, and Henry Claypool, AAPD. https://cdt.org/wp-content/uploads/2025/03/2025-03-11-CDT-Building-A-Disability-Inclusive-AI-Ecosystem-report-final.pdf

federal activity, including in employment, education, benefits determination, information and communications technologies, healthcare, transportation, and criminal justice.

Certain core principles in the development and use of AI can serve as an important foundation facilitating implementation of this guidance. This includes continued investing in research on human-AI interactions; transparency through disclosure of agencies' AI use cases; the availability of opt-out mechanisms that meet accessibility requirements; training practitioners to be aware of practical design guidance such as that mentioned above; pre- and post-deployment auditing of AI systems for potential bias; risk analysis that accounts for impacts to different populations including those with disabilities; and continued coordination among Chief AI Officers through the CAIO Council to share strategies that support efficient implementation.

Thank you for your consideration of these comments. For further clarification or inquiry, I am reachable at the email below.

Sincerely,

- *Judy Brewer*

Judy Brewer
[redacted]
Current affiliation (for identification only): Executive Fellow, School of Information, UC Berkeley
Formerly: Assistant Director for Accessibility, Office of Science and Technology Policy